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Case Number: 26STCV03311 Hearing Date: August 28, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

AUDLEY LLOYD

MARTIN OSBOURNE,

vs.

OPTUM HEALTH

CARE INC., et al.

Case No.:

26STCV03311

Hearing Date: August 28, 2026

Defendants Optum Health Care Inc.'s,

Healthcare Partners Medical Group, P.C.'s, Hany Farid's, and Andrew Behesnilian's

motion to compel arbitration of Plaintiff Audley Lloyd Martin Osbourne's claims

in this action is granted. This case is

stayed pending arbitration.

The Court sets a non-appearance case review for August 27, 2027, at 8:30

a.m. The parties are directed to submit a joint statement five calendar days in advance, apprising the Court of the status of the arbitration.

Defendants Optum Health Care Inc. ("Optum"), Healthcare Partners Medical Group, P.C. ("HPMG"), Hany Farid ("Farid"), and Andrew Behesnilian ("Behesnilian") ("Defendants") move for an order compelling arbitration of all claims asserted by Plaintiff Audley Lloyd Martin Osbourne ("Osbourne") ("Plaintiff") and to stay the action pending arbitration. (Notice of Motion, pg. 2; C.C.P. §§1281 et seq.; 9 U.S.C. §§1 et seq.)

Request for Judicial Notice

Defendants' 6/8/26 request for judicial notice of the AAA Employment Arbitration Rules (Effective May 1, 2025) (Decl. of Lee, Exh. I) is granted.

Background

On February 2, 2026, Plaintiff filed his operative complaint ("Complaint") against Defendants alleging ten causes of action: (1) race, national origin, and/or ancestry discrimination; (2) hostile work environment harassment on the basis of race, national origin, and/or ancestry; (3) retaliation for engaging in protected activity; (4) failure to prevent discrimination, harassment, or retaliation; (5) breach of express oral contract not to terminate employment without good cause; (6) breach of implied-in-fact contract not to terminate employment without good cause; (7) negligent hiring, supervision, and retention; (8) wrongful termination in violation of public policy; (9) whistleblower retaliation; and (10) intentional infliction of emotional distress.

Defendants filed the instant motion on June 5, 2026, and filed duplicates of the motion on June 8, 2026. Plaintiff filed his opposition on August 17, 2026. Defendants filed their reply on August 21, 2026.

Motion to Compel Arbitration

A.

Arbitration

Agreement

1.

The Arbitration

Agreement is enforceable

Federal

law provides for enforcement of this Arbitration Agreement. The Federal Arbitration Act, 9 U.S.C. §1, et seq. ("FAA"), establishes a strong federal policy in favor of arbitration

of disputes where a written arbitration agreement exists. Section 2 of the FAA provides, in pertinent

part that "[a] written provision . . . to settle by arbitration a controversy

thereafter arising out of such contract . . .

shall be valid, irrevocable, and enforceable." (9 U.S.C. §2.)

The purpose of the FAA is to "reverse the longstanding judicial

hostility to arbitration agreements." (Gilmer

v. Interstate/Johnson Lane Corp. (1991) 500 U.S. 20, 24.) The FAA places arbitration agreements "on an

equal footing with other contracts and [requires courts] to enforce them

according to their terms." (AT&T

Mobility, LLC v. Concepcion (2011) 563 U.S. 333, 339; see also Rent-A-Center

West, Inc. v. Jackson (2010) 561 U.S. 63, 67 ["The FAA reflects the

fundamental principle that arbitration is a matter of contract."].) The FAA will preempt not only a state law

that "discriminat[es] on its face against arbitration," but also a state law

that "covertly accomplishes the same objective by disfavoring contracts that

(oh so coincidentally) have the defining features of arbitration agreements." (Kindred Nursing Centers Limited

Partnership v. Clark (2017) 137 S.Ct. 1421, 1426.)

The

United States Supreme Court has specifically held that the FAA applies to

employment contracts: "[A]s a matter of law the answer is clear. In the Federal Arbitration Act, Congress has

instructed federal courts to enforce arbitration agreements according to their

terms." (Epic Systems Corp. v. Lewis (2018)

138 S.Ct. 1612, 1619 [holding that employees must submit to arbitration

agreements including those with collective action waivers].)

The

FAA restricts a court's inquiry related to compelling arbitration to two

threshold questions: (1) whether there was an agreement to arbitrate between

the parties; and (2) whether the agreement covers the dispute. (Howsam v. Dean Witter Reynolds, Inc. (2002)

537 U.S. 79, 84.) Here, both criteria

are satisfied. First, Plaintiff agreed to arbitration when he entered into the Physician

Employment Agreement ("Employment Agreement") with Defendant HPMG on December 26,

2024, which contained the relevant Employment Arbitration Provision (“Arbitration Agreement”). (Decl. of McCoy ¶7, Exh. B at Attach. B at pg. 6.)

Defendants

sufficiently authenticated Plaintiff’s electronic signature. A proponent of an e-signature may authenticate the signature by introducing any “evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is,” which includes circumstantial evidence. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1061; Evid. Code §1400; *People v. Calhoun* (2019) 38 Cal.App.5th 275, 313.) This includes “a showing of the efficacy of any security procedure applied to determine the person to which the . . . electronic signature was attributable.” (*Espejo*, 246 Cal.App.4th at pg. 1061, citing Civ. Code §1633.9(a).)

Ruiz v. Moss Brothers Auto Group, Inc. explicitly states that there can be no agreement to arbitrate where the party compelling arbitration cannot authenticate the signature. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.) “[A]ny writing must be authenticated before the writing or secondary evidence of its content may be received in evidence.” (*Id.* at pg. 843, citing Evid. Code §1401; *People v. Valdez* (2011) 201 Cal.App.4th 1429, 1435.)

In *Ruiz*, while the defendants’ declaration provided that Ruiz electronically signed the arbitration agreement, the declaration did not explain how defendants ascertained that the electronic signature on the agreement was the act of Ruiz. (*Ruiz*, 232 Cal.App.4th at pg. 843.) Ruiz had alleged that he did not recall signing the agreement, and, while the declarant stated that the agreement was “part of an employee acknowledgment form that ‘is’ presented to all Moss Bros. employees as part of a series of changes to the company’s employee handbook, and each employee is required to log into the company’s HR system, using his or her ‘unique ID and password’ to review and sign the employee acknowledgement form,” the *Ruiz* Court held that the declarant had not “explain[ed] how, or upon what basis, [the declarant] inferred that the electronic signature on the [arbitration agreement] was ‘the act of’ Ruiz, . . . [which] left a critical gap in the evidence supporting the petition.” (*Id.* at pg. 844)

Here,

Defendants met their burden to provide admissible evidence that Plaintiff electronically signed the arbitration agreement. Defendant Optum’s Legal Services Team Lead, Vennise

McCoy ("McCoy") declares that she has "a general understanding of the company's operations and business relationships with affiliates, such as HPMG." (See Decl. of McCoy ¶14.) McCoy declares,

I am aware that Dr. Osbourne was employed by HPMG, not Optum Health Care Inc. or Optum Services, Inc., and signed his Physician Employment Agreement and Employment Arbitration Policy ("Arbitration Agreement") with HPMG on December 26, 2024. In or about 2024, I and others in my department were tasked with providing assistance on HPMG's rollout of new employment agreements to providers due to a change in the compensation policy. On or about December 23, 2024, I sent Dr. Osbourne a copy of his Physician Employment Agreement and Arbitration Agreement via Adobe Acrobat Sign using my work email address (). The Physician Employment Agreement and Arbitration Agreement, which were 20 pages in total, were sent via Adobe Acrobat Sign to Dr. Osbourne's work email address (). A true and correct copy of the message that was sent to Dr. Osbourne from me via Adobe Acrobat Sign . . .

(Decl. of McCoy ¶15, Exh. A.) McCoy further declares, "[o]n December 24, 2024, I received an email from Dr. Osbourne, wherein he asked that I resend him the Physician Employment Agreement and Arbitration Agreement for signing due to a temporary error and invalid access token message that he received on his end." (Decl. of McCoy ¶16, Exh. A.) McCoy's declaration attaches the Final Audit Report, which sets forth McCoy as the individual who created and sent the employment agreement, including the Agreement, and Plaintiff as the

individual who viewed and signed it. (Decl. of McCoy ¶17, Exh. B at PDF pgs. 28-29.) Plaintiff's declaration also does not dispute that he signed the agreement. (See Decl. of Osbourne ¶17 ["I am not an attorney, nor do I have any legal training. I did not fully understand the legal significance of the Agreement at the time I signed it."], emphasis added.)

Second, the Arbitration Agreement covers Plaintiff's claims asserted in his Complaint. The Arbitration Agreement states

that “[Defendant HPMG] and [Plaintiff] mutually consent to the resolution by arbitration of all claims and controversies, past, present, or future, that [Plaintiff] may have against [Defendant HPMG] or [Defendant HPMG] may have against [Plaintiff], which arise out of or relate to [Plaintiff’s] employment, application for employment, and/or termination of employment.”
(Decl. of McCoy ¶7, Exh. B at Attach. B at §3.2.)

California

law also favors arbitration of the instant case. The California Arbitration Act (“CAA”), codified at C.C.P. §1281 et seq., provides, “A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract.” (C.C.P. §1281; see also *Grafton Partners L.P. v. Superior Court* (2005) 36 Cal.4th 944, 955 “[U]nlike predispute jury waivers, predispute arbitration agreements are specifically authorized by statute.”].)

“California

law, like federal law, favors enforcement of valid arbitration agreements.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97, 99.) The public policy in favor of arbitration is so strong that California courts have held that an employee is “bound by the provisions of the [arbitration] agreement regardless of whether [he] read it or [was] aware of the arbitration clause when [he] signed the document.” (*Brookwood v. Bank of America* (1996) 45 Cal.App.4th 1667, citing *Macaulay v. Norlander* (1992) 12 Cal.App.4th 1.) The only prerequisite for a court to order arbitration is a determination that the parties have entered into an agreement to arbitrate the dispute. (*United Transportation Union v. Southern California Rapid Transit District* (1992) 7 Cal.App.4th 804, 808.) Thus, arbitration must be ordered “unless the agreement clearly does not apply to the dispute in question.” (*Vianna v. Doctors’ Management Co.* (1994) 27 Cal.App.4th 1186, 1189.)

Here,

Plaintiff entered into the Arbitration Agreement with Defendant HPMG on December 26, 2024. (Decl. of McCoy ¶7, Exh. B at Attach. B, pg. 6.)

Plaintiff’s

first argument in opposition that Defendants failed to properly authenticate Plaintiff’s purported electronic signature is unavailing.

(Opposition, pg. 3.) Plaintiff does not deny signing the document, only that, after reviewing the documents presented to him, he did not “understand that the attached policy constituted a binding agreement to arbitrate legal disputes or that it required me to waive my right to a jury trial. No one from HPMG identified the arbitration policy to me or explained its legal significance before I signed,” which does not demonstrate lack of assent to the Agreement at the time he executed it. Further, the cases cited by Plaintiff in opposition are inapposite; the plaintiffs in *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, and *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, disputed that they signed their respective arbitration agreements, which the instant Plaintiff does not.

Based

on the foregoing, Defendants met their burden to prove the existence of a valid Arbitration Agreement with Plaintiff that is enforceable by Defendants.

2.

Covered Claims

The

Arbitration Agreement states,

3.2 [Defendant HPMG] and [Plaintiff] mutually consent to the resolution by arbitration of all claims and controversies, past, present, or future, that [Plaintiff] may have against [Defendant HPMG] or [Defendant HPMG] may have against [Plaintiff], which arise out of or relate to [Plaintiff's] employment, application for employment, and/or termination of employment.

3.3 If an employment-related dispute is based on a legal claim not expressly excluded from this Policy, any party to the dispute may initiate the arbitration process. Practice is not required to follow the steps of Policy before initiating or implementing any disciplinary action.

3.4 Subject to the specific exclusions below, the claims covered by Policy include, but are not limited to: claims for unfair competition and violation of trade secrets; claims incidental to the employment relationship but arising after that relationship ends (for example, claims

arising out of or related to post-termination defamation or job references and claims arising out of or related to post-employment retaliation); claims for wages or other compensation due (including but not limited to, minimum wage, overtime, meal and rest breaks, waiting time penalties, vacation pay and pay on separation); claims for breach of any contract or covenant (express or implied); tort claims; common law claims; equitable claims; claims for discrimination and harassment; retaliation claims; and claims for violation of any federal, state or other governmental law, statute, regulation, or ordinance, except claims excluded below.

. .
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3.7 Claims excluded from mandatory arbitration

under Policy are (i) Workers' Compensation benefit claims (but workers' compensation discrimination and/or retaliation claims are covered); (ii) state unemployment or disability insurance compensation claims; (iii) claims for severance benefits under Practice Severance Pay Plan if any; (iv) claims for benefits under Practice's other ERISA benefit plans if any; (v) claims for benefits under Practice's Short-Term Disability Plan, if any; (vi) claims that may not be the subject of a mandatory arbitration agreement as provided by Section 8116 of the Department of Defense ("DoD") Appropriations Act for Fiscal Year 2010 (Pub. L. 111-118), Section 8102 of the DoD Appropriations Act for Fiscal Year 2011 (Pub. L. 112-10, Division A), and their implementing regulations, or any successor DoD appropriations act addressing the arbitrability of claims; and (vii) claims that the Dodd-Frank Wall Street Reform and Consumer Protection Act or other controlling federal law bars from the coverage of mandatory pre-dispute arbitration agreements.

(Decl. of McCoy ¶7, Exh. B at Attach. B

§§3.2-3.4, 3.7, emphases added.) Plaintiff's claims asserted in his Complaint for violations of FEHA, the Labor Code, breach of express and implied contract, negligent hiring, intentional infliction of emotional distress, and wrongful termination in violation of public policy fit squarely within the category of "covered claims" and are not inclusive of "claims excluded from mandatory arbitration under Policy."

B.

Enforcement by non-signatories

California

law permits non-signatories to enforce arbitration agreements where the plaintiff alleges the non-signatories acted as an agent of a signatory or where the claims arise from the same relationship and alleged conduct covered by the agreement. (*Dryer v. Los Angeles Rams* (1985) 40 Cal.3d 406, 418; *Thomas v. Westlake* (2012) 204 Cal.App.4th 605, 614.)

Moreover,

where the claims against the non-signatories are dependent on, inextricably intertwined with, or intimately connected to the agreement and the relationship covered by the arbitration provision, a plaintiff may be equitably estopped from avoiding arbitration with non-signatories. (*Goldman v. KPMG LLP* (2009) 173 Cal.App.4th 209, 219; *Molecular Analytical Sys. v. CIPHERGEN Biosystems, Inc.* (2010) 186 Cal.App.4th 696, 706; *Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782, 786-788.) Here, Plaintiff does not assert separate, isolated claims against only Defendants Optum, HPMG, Farid, or Behesnilian that arise from conduct unrelated to Defendant HPMG. The claims against Defendants Optum and HPMG, and those against all Defendants, are factually intertwined because they depend on the same alleged employment assignment, workplace conduct, complaints, and alleged agency or joint employment relationship. Requiring Plaintiff to arbitrate his claims against Defendant HPMG while litigating the same claims against Defendants Optum, Farid, and Behesnilian in court would undermine the arbitration agreement and create the very inefficiency and risk of inconsistent rulings arbitration is intended to avoid.

C.

Unconscionability

“[P]rocedural

and substantive unconscionability must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (*Armendariz*, 24 Cal.4th at pg. 102.) Courts invoke a sliding scale which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves, i.e., the more substantively oppressive the contract term, the less evidence of

procedural unconscionability is required to conclude that the term is unenforceable, and vice versa. (Id., at pg. 114.) Plaintiff bears the burden of proving that the provision at issue is both procedurally and substantively unconscionable.

1.

Procedural

Unconscionability

Plaintiff

argues the Arbitration Agreement is procedurally unconscionable because the Arbitration Agreement is a contract of adhesion and therefore oppressive. (Opposition, pgs. 7-9.)

“Procedural

unconscionability focuses on the elements of oppression and surprise.

[Citations] ‘Oppression arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice . . .

Surprise involves the extent to which the terms of the bargain are hidden in a ‘prolix printed form’ drafted by a party in a superior bargaining position.’

[Citations.]” (Roman v. Superior Court (2009) 172 Cal.App.4th 1462, 1469.)

Procedural

unconscionability “focuses on the unequal bargaining positions and hidden terms common in the context of adhesion contracts.”

(24 Hour Fitness, Inc. v. Superior Court (1998) 66 Cal.App.4th 1199, 1212-1213.) Although standard

employment agreements offered on a “take it or leave it” basis are generally considered contracts of adhesion, this alone is not enough to equate to unconscionability. (See Graham

v. Scissor-Tail, Inc. (1981) 28 Cal.3d 807, 817-819 [“To describe a contract as adhesive in character is not to indicate its legal effect. It is, rather, ‘the beginning and not the end of the analysis insofar as enforceability of its terms are concerned.’”].)

Adhesion contracts are “fully enforceable . . . unless certain other factors are present which under established legal rules—legislative or judicial—operate to render it otherwise.” (Id. at pgs. 819-820; Harper v. Ultimo (2003) 113 Cal.App.4th 1402, 1409 [adhesion alone does not render arbitration agreements unconscionable]; see also Armendariz, 24

Cal.4th at 114; Lagatree v. Luce, Forward, Hamilton & Scripps, LLP (1999) 74 Cal.App.4th 1105 [discussing many authorities upholding arbitration agreements contained in adhesion contracts].)

Plaintiff's

argument in opposition that he was required to sign the Agreement as a condition of his employment, and that he was never given the opportunity to negotiate the terms of Defendants' Arbitration Agreement is unavailing. The adhesive nature of arbitration agreements in the employment context alone does not render an agreement unenforceable. (Lagatree, 74

Cal.App.4th at pg. 1127 ["[C]ases uniformly agree that a compulsory predispute arbitration agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a 'take it or leave it' basis."]; Armendariz, 24 Cal. 4th at pg. 113 [holding that the requirement that the employee sign an arbitration agreement may contain some elements of procedural unconscionability, but that, in itself, does not invalidate the arbitration agreement]; Ajamian v. CantorCO2e, LP (2012) 203 Cal.App.4th 771, 796 ["Where there is no other indication of oppression or surprise, the degree of procedural unconscionability of an adhesion agreement is low[.]"].)

Here,

there is no evidence before the Court that Plaintiff was pressured into signing the Agreement, either by time or the influence of an individual, or that Plaintiff did not have the opportunity to seek counsel before signing the document. Plaintiff executed the document electronically and was given the opportunity to review the information he submitted in his application prior to submission. (See Decl. of McCoy ¶8 ["Prior to signing the Physician Employment Agreement and Arbitration Agreement, Dr. Osbourne had the opportunity to ask questions. Aside from his email to me on December 24, 2024, Dr. Osbourne did not direct any communications to me regarding the Physician Employment Agreement or Arbitration Agreement, and I am not aware of Dr. Osbourne objecting to the agreements because he signed the agreements on December 26, 2024, and continued working with HPMG until his separation from employment with HPMG"].)

Plaintiff's decision to forgo meeting with an attorney to discuss the Arbitration Agreement does not render the agreement oppressive. Defendant HPMG's failure to include a clause in the Arbitration Agreement indicating that Plaintiff could consult an attorney prior to executing the form demonstrates at most, minimal procedural unconscionability. (See Oto, LLC v. Kho (2019) 8 Cal.5th 111, 126-127.)

Plaintiff

has failed to demonstrate that the Arbitration Agreement is procedurally unconscionable to a high degree, and is at most, minimally procedurally unconscionable. (Hicks v. Superior Court (2004) 115 Cal.App.4th 77, 91.)

Based on the foregoing, the Court finds the Arbitration Agreement is not so oppressive to render the agreement procedurally unconscionable.

2.

Substantive

Unconscionability

Plaintiff

argues the Arbitration Agreement is substantively unconscionable because it (1) lacks bilaterality; (2) waives Plaintiff's right to bring a PAGA Action; (4) does not provide for adequate discovery; (5) permits dispositive adjudication without guaranteeing Plaintiff adequate discovery; and (6) contains an ambiguous delegation provision.
(Opposition, pgs. 9-10.)

"Substantive

unconscionability focuses on the actual terms of the agreement and evaluates whether they create 'overly harsh' or "one-sided' results' [Citations] that is, whether contractual provisions reallocate risks in an objectively unreasonable or unexpected manner.

[Citation] Substantive unconscionability 'may take various forms,' but typically is found in the employment context when the arbitration agreement is 'one-sided' in favor of the employer without sufficient justification, for example, when 'the employee's claims against the employer, but not the employer's claims against the employee, are subject to arbitration.' [Citations]." (Roman, 172

Cal.App.4th at pgs. 1469-1470.) In

determining whether an arbitration agreement is unconscionable, the Court considers whether the agreement: (1) provides for a neutral arbitrator; (2) provides for reasonable discovery; (3) requires a written award; (4) provides for the same remedies that otherwise would be available in court; and (5) does not require employees to bear costs unique to arbitration. (See Armendariz, 24 Cal.4th at pgs. 102-103.)

First,

Plaintiff's argument that the Arbitration Agreement lacks bilaterality is unavailing. Plaintiff argues Defendant's injunctive relief provision purports to be a mutual provision, but an employee rarely, if ever, has cause to seek injunctive or equitable relief against their employer, and functions in practice as a unilateral route back to court available solely for Defendants' benefit. (Opposition, pg. 7.) The express language of the agreement confers a reciprocal obligation amongst the parties to arbitrate matters related to Plaintiff's employment. (Decl. of McCoy ¶7, Exh. B, Attach B. at §§3.1, 3.2, 3.3, 3.4, 3.8, 7.) Section 3.8 of the Arbitration Agreement states, in part, "this Policy does not preclude either physician employees or Practice from seeking emergency or temporary injunctive relief in a court of law in accordance with applicable law. However, after the court has issued a ruling concerning the emergency or temporary injunctive relief, physician employees and Practice are required to submit the dispute to arbitration pursuant to this Policy." (Decl. of McCoy ¶7, Exh. B, Attach B. at §3.8.) Section 3.8 is bilateral, as it confers the same rights on Plaintiff and the employer. Both Plaintiff and Defendants can seek emergency or temporary injunctive relief in a court of law, such as a workplace restraining order, and both are required to submit claims to arbitration after the court issues the emergency or temporary relief. There is no basis for Plaintiff's assertion that employees never have cause for seeking emergency or temporary relief relating to their employment.

Second,

under the FAA, employers are entitled to enforce arbitration agreements insofar as they mandate arbitration of individual PAGA claims. (See *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 662 ["We hold that the FAA preempts the rule of *Iskanian* insofar as it precludes division of PAGA actions into individual and non-individual claims through an agreement to arbitrate," and therefore "Viking [River Cruises] is entitled to compel arbitration of [plaintiff's] individual [PAGA] claim."]; see also *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1118-1119 ["Viking River requires enforcement of agreements to arbitrate a PAGA plaintiff's individual claims if the agreement is covered by the FAA"].) Here, the Arbitration Agreement exempts from arbitration representative PAGA claims but notes the "Private Attorney General Waiver does not apply to any claim Physician brings in arbitration as a private attorney general solely on Physician's own behalf and not on behalf of or regarding others." (Decl. of McCoy

¶7, Exh. B, Attach B. at §4.2.) Plaintiff's argument regarding PAGA is a non-sequitur, given that Plaintiff does not assert a PAGA claim and does not argue that he will move for leave to amend to add a PAGA claim. In the event Plaintiff seeks to pursue a PAGA claim, hypothetically, he would still be entitled to pursue a viable representative PAGA claim in Court following the resolution of Plaintiff's arbitration of an individual claim arising from his employment.

Third,

Plaintiff's argument that the Arbitration Agreement does not provide adequate discovery is also unavailing. Under Armendariz, an arbitration agreement must provide for adequate discovery, which means "discovery sufficient to adequately arbitrate [the parties'] statutory claim[s], including access to essential documents and witnesses, as determined by the arbitrator(s)." (24 Cal.4th at pgs. 102-106.)

The Armendariz Court recognized

that an arbitration agreement is lawful if, among other things, it provides for "more than minimal discovery." (Id.)

Here, the Agreement permits one set of

Requests for Production of Documents, one Interrogatory, two depositions, and physical/mental examinations. (Decl. of McCoy ¶7, Exh. B, Attach B. at §5.10(A)-(D).) Section

5.10(E) of the Arbitration Agreement states, in part, "[e]ach party can request that the arbitrator allow additional discovery, and additional discovery may be conducted under the parties' mutual stipulation or as ordered by the arbitrator."

(Decl. of McCoy ¶7, Exh. B, Attach B. at §5.10(E).) With respect to the arbitrator's authority to

permit additional discovery, the Agreement further states that the arbitration

will be conducted pursuant to the AAA Employment Arbitration Rules. (Decl.

of McCoy ¶7, Exh. B, Attach B. at §5.10(D).) AAA Employment Rule 21 provides: "The

arbitrator shall manage any necessary exchange of information among the parties, including depositions, interrogatories, document production, or other means, with a view to achieving an efficient and economical resolution of the

dispute while, at the same time, promoting equality of treatment and safeguarding

each party's opportunity to fairly present its claims and defenses." (Decl. of Lee, Exh. I at R-21(a).) Further, "the arbitrator may, on application

of a party or on the arbitrator's own initiative: . . . require such other

forms of information exchange as the arbitrator deems necessary." (Decl. of Lee, Exh. I at R-21(c)(iii).) By allowing various forms of discovery and

arbitrator discretion to grant additional discovery, the Agreement clearly

provides for "more than minimal discovery" and, therefore, satisfies the requirements

of Armendariz's discovery element.

Pursuant

to AAA Rule 32, "Where a party seeks to file a dispositive motion, the arbitrator may allow the filing of, and make rulings upon, a dispositive motion only if the arbitrator determines the moving party has shown that the motion is likely to succeed and to dispose of or narrow the issues in the case." (Decl. of Lee ¶17, Exh. I at R-32(b).) In the event that Defendants seek leave to file a dispositive motion, and to the extent that Plaintiff is without sufficient information to oppose the motion, Plaintiff may state his objection under the Agreement and AAA Rules.

Finally,

Plaintiff's argument that the delegation provision is not clear and unmistakable because §3.6 does not state that the arbitrator, and not any court, has the exclusive authority to decide arbitrability is unavailing. Arbitration Agreement §§2, 2.1, 2.2, 3.1, 3.2, 3.3, 3.4, and 3.6, makes clear that the parties unmistakably delegated gateway issues of arbitrability concerning Plaintiff's claims to the arbitrator, and binding U.S. Supreme Court precedent mandates this Court to enforce the delegation provision, unless the provision is, itself, unenforceable. (*Rent-A-Center, W., Inc. v. Jackson* (U.S.S.C. 2010) 561 U.S. 63, 72.)

Based

on the evidence before the Court, the terms of the Arbitration Agreement do not create overly harsh or one-sided results, satisfying the requirements for a substantively conscionable agreement.

Based

on the foregoing, the Court finds the Arbitration Agreement is not substantively unconscionable.

D.

Stay of Current

Action

The

FAA mandates a stay. Where an action involves "any issue referable to arbitration under an agreement in writing," the court "shall on application of one of the parties stay the trial of the action until such arbitration has been had." (9 U.S.C. §3.) The statutory directive is not discretionary as to claims subject to arbitration. Plaintiff's claims against all Defendants

arise from the operative facts. Because the arbitration will address the core factual and legal issues underlying the action, a stay of the entire matter pending completion of arbitration would serve judicial efficiency and avoid inconsistent results.

Accordingly,
this case is stayed pending arbitration.

E.

Conclusion

Defendants'
motion to compel arbitration is granted.

The case is
stayed pending arbitration. The Court sets a non-appearance case review for August 27, 2027, at 8:30 a.m. The parties are directed to submit a joint statement five calendar days in advance, apprising the Court of the status of the arbitration.

Moving Party to
give notice.

Dated: August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court